Cross-Border Taxation of Cryptocurrency Assets: An Exegesis of the Tax Residency Transition from Sweden to Poland

Introduction to Transnational Digital Asset Taxation

The migration of high-net-worth individuals, active investors, and highly skilled professionals across European Union jurisdictions presents exceptionally complex challenges in the realm of international tax law. This complexity is significantly magnified when the transition involves moving from a high-tax Nordic welfare model, such as the Kingdom of Sweden, to an Eastern European jurisdiction with a flat-rate capital gains regime, such as the Republic of Poland. The transition of tax residency necessitates a rigorous, multi-layered examination of domestic tax codes, bilateral double taxation treaties, and the rapidly evolving administrative jurisprudence governing digital assets. Cryptocurrencies—characterized by their inherently borderless nature, high price volatility, pseudonymous architecture, and lack of physical geographical situs—continually stress-test traditional frameworks of cross-border taxation that were fundamentally designed for tangible property, real estate, and fiat-denominated corporate securities.

This comprehensive research report provides an exhaustive, granular analysis of the tax implications surrounding a mid-year residency transition from Sweden to Poland. It specifically addresses the mechanics of establishing Polish tax residency under domestic law, the application of split-year taxation principles, the resolution of dual residency conflicts under the Sweden-Poland Double Taxation Treaty (DTT), and the highly specific, mathematically rigorous methodologies required for tracing the cost basis of cryptocurrency assets acquired abroad and subsequently disposed of under Polish tax jurisdiction. Furthermore, the analysis evaluates the transferability of foreign capital losses, the nuanced treatment of assets acquired via employment compensation or decentralized finance (DeFi) mechanisms, the mechanisms for claiming foreign tax credits, and the stringent compliance infrastructure necessitated by emerging European directives. Notably, the impending enforcement of the Eighth Directive on Administrative Cooperation (DAC8) radically alters the risk profile for non-compliant taxpayers, transitioning the European digital asset landscape from an era of voluntary disclosure to one of automated, pan-European data transparency.[1]

Part I: The Statutory Architecture of Tax Residency

The Paradigm of Unlimited Tax Liability

The foundational principle of personal income taxation in the Republic of Poland is the concept

of unlimited tax liability (nieograniczony obowiązek podatkowy). This legal construct is inherently tied to the taxpayer's residency status and dictates that a resident is subject to taxation on their worldwide income, irrespective of the geographical location where the revenue was generated or the jurisdiction in which the financial assets are held.[3] Conversely, individuals possessing limited tax liability are taxed solely on income strictly sourced within the territorial borders of Poland.[3]

In the Polish legal system, the definitive rules for determining tax residency are codified within Article 3(1a) of the Personal Income Tax (PIT) Act.[4] According to the statutory language of this provision, a natural person is legally deemed to have their place of residence within the territory of the Republic of Poland—and thereby inherently becomes a Polish tax resident subject to worldwide taxation—if they satisfy at least one of two independent, statutory conditions.[3] The first condition is that the individual maintains their centre of vital interests (centrum interesów życiowych) within the territory of Poland.[5] The second condition is an objective temporal threshold, stipulating that the individual stays in the territory of Poland for a period exceeding 183 days within a given tax year.[3]

The legislative phrasing of the statute utilizes a logical disjunction, implying that satisfying either the qualitative center of vital interests criterion or the quantitative 183-day criterion is legally sufficient to trigger the establishment of Polish tax residency.[7] However, the literal interpretation of the statute is heavily nuanced by the established practice of Polish tax authorities (Krajowa Administracja Skarbowa) and the rulings of the administrative courts. In the adjudication of complex cross-border scenarios, the qualitative "centre of vital interests" criterion generally assumes absolute precedence over the mathematical 183-day rule.[4]

Deconstructing the Centre of Vital Interests

The concept of the centre of vital interests is a dual-pronged legal construct comprising both personal and economic ties to the jurisdiction. Polish jurisprudence treats this evaluation not merely as a matter of formal administrative registration, such as acquiring a resident card or a PESEL number, but as an exhaustive factual inquiry into where an individual's life is genuinely and authentically concentrated.[8] The tax authorities do not merely examine declarations; they scrutinize the empirical reality of the taxpayer's existence.[8]

The centre of personal interests is typically established by identifying the location of the taxpayer's immediate family structure. The physical residence of a spouse, domestic partner, and dependent children serves as the strongest indicator of personal ties.[5] If a taxpayer relocates to Poland accompanied by their family, enrolls their children in local educational institutions, and establishes a primary, habitual household (regardless of whether the real estate is owned outright or leased under a long-term contract), the centre of personal interests shifts immediately to Poland.[8] Furthermore, authorities analyze secondary personal indicators, including the locus of the individual's social, civic, and cultural engagements, memberships in athletic or charitable organizations, the location of primary healthcare providers, and the geographic center of their daily logistical routines.[5]

The centre of economic interests requires a parallel analysis focusing on the primary source of the taxpayer's income and wealth generation. This involves determining the location of active business operations, primary employment ties, the situs of actual asset management, the jurisdiction housing the majority of investment portfolios, and the location of primary banking relationships and credit facilities.[5]

In complex transitional scenarios where an individual moves to Poland but intentionally retains significant economic ties to Sweden—such as holding directorships in Swedish corporate entities, maintaining primary brokerage accounts in Stockholm, or deriving passive income from Swedish real estate—the determination process becomes highly intricate. In such instances, both Polish administrative practice and international treaty guidelines dictate that personal ties are generally weighted more heavily than economic ties to break a jurisdictional deadlock.[4] The rationale is that human beings naturally gravitate toward their families and primary homes, making these factors a more reliable indicator of true residency than the often mobile and digitally decentralized nature of modern economic capital.

The Mechanics of the 183-Day Threshold

The physical presence test is an objective, mathematical threshold designed to capture individuals who might lack profound personal or economic ties but who nonetheless consume public resources and infrastructure by residing within the state for the majority of the year. If an individual spends more than 183 days within the borders of Poland during a specific calendar year, they are categorically classified as a resident for tax purposes.[5]

It is imperative to note that the Polish application of this rule is strictly bounded by the calendar year, which serves as the statutory tax year for natural persons (January 1 to December 31). It is not calculated on a rolling twelve-month basis that crosses calendar boundaries.[6] Once the 183-day threshold is breached within a single calendar year, Polish tax residency is established, and formal payroll structures or the lack of permanent registration do not override this mathematical fact.[6]

However, the intersection of the two criteria produces specific hierarchical outcomes. The Ministry of Finance has explicitly clarified that if a taxpayer's centre of vital interests is unambiguously and dominantly located in Poland, they will be classified as a Polish tax resident even if their physical presence in the country falls significantly below the 183-day threshold due to extensive international business travel, tourism, or rotational work assignments abroad.[4] The temporal criterion is subordinate to the qualitative criterion. Conversely, the 183-day rule is deployed as the decisive, determinative factor only in situations where the centre of vital interests cannot be unambiguously localized—for instance, if an unmarried, location-independent cryptocurrency trader maintains equivalent social and economic connections with both Sweden and Poland.[4]

Part II: Split-Year Residency and the Temporal Boundary

The Concept of Mid-Year Jurisdictional Transition

A profound legal ambiguity arises when a taxpayer undergoes a geographical relocation midway through the calendar year. Assuming a hypothetical scenario where the taxpayer permanently transferred their physical presence, household, and family from Sweden to Poland in March 2023, the question emerges as to whether Poland asserts the right to tax the individual's worldwide income retroactively for the entire calendar year.

Under the specific provisions of Polish tax law, augmented by extensive administrative tax practice and jurisprudence, a change in tax residency operates with a strictly prospective effect; it is never applied retroactively.[4] This legal mechanism is formally recognized as the doctrine of "split tax residency" (podział roku podatkowego).[4] Polish jurisprudence acknowledges the practical reality of global mobility, recognizing that a natural person can legally be a resident of one sovereign state for the initial fraction of the tax year and a resident of an entirely different sovereign state for the remaining fraction.[4]

Consequently, if the taxpayer in question moved to Poland in March 2023 and unequivocally established their centre of vital interests within Polish territory at that specific juncture, they are legally treated as a Polish tax resident possessing unlimited tax liability strictly and exclusively from that specific date forward.[4]

For the chronological period spanning from January 1 to the exact date of relocation in March 2023, the taxpayer maintains limited tax liability within Poland.[3] During this initial phase, Poland possesses the legal authority to tax only income that is geometrically sourced within Polish territory, such as rental income from Polish real estate or wages for physical labor performed on Polish soil.[3] Assuming the taxpayer's cryptocurrency trading was conducted via digital exchanges while they were physically residing in Sweden, Poland has absolutely no jurisdictional claim over those specific transactions. During this Jan-Mar period, the taxpayer retains unlimited tax liability solely in Sweden.[4]

From the date of the transfer of the centre of vital interests in March 2023 through December 31, 2023, the paradigm shifts entirely. The taxpayer assumes unlimited tax liability in Poland, meaning their entire worldwide income—including all cryptocurrency trades, decentralized finance (DeFi) yields, staking rewards, and capital gains executed globally after the move date—is subject to the Polish tax regime.[4] Therefore, the hypothesis that Poland automatically taxes all crypto trades from January 2023 onwards simply because the taxpayer eventually exceeded the 183-day physical presence threshold later in the year is fundamentally incorrect. The application of the split-year principle acts as an absolute legal shield, protecting pre-migration capital gains from retroactive Polish taxation.[4]

Split-Year Tax Residency and Allocation of Taxing Rights (2023 Transition)

Phase 1: Sweden	Phase 2: Poland
JURISDICTION Sweden	JURISDICTION Poland
TAX LIABILITY STATUS **Unlimited Tax Liability to Sweden.** Treated as a non-resident in Poland (liable for Polish-sourced income only).	TAX LIABILITY STATUS **Unlimited Tax Liability to Poland (Art 3(1a) PIT).** Fully liable to declare and pay tax on worldwide income in Poland.
CAPITAL GAINS TREATMENT Taxed exclusively under the Swedish regime. Poland does not assert taxation rights on gains realized prior to the move.	CAPITAL GAINS TREATMENT Subject to the Polish tax regime (**19% flat rate**) with prospective effect starting exactly from the move date.

In a split-year residency scenario, unlimited tax liability in Poland applies prospectively from the exact date the centre of vital interests is transferred. Income generated prior to this date remains solely under the jurisdiction of the former state of residence.

Data sources: TaxCoach, Rezydencja Podatkowa Malta, KPMG

Part III: Treaty Conflict Resolution and the Sweden-Poland DTT

The Mechanics of Dual Residency

Domestic tax legislation is inherently unilateral, frequently resulting in overlapping jurisdictional claims where two sovereign nations simultaneously assert that a taxpayer is their resident, thereby demanding tax on global income. This conflict is highly probable in a Sweden-to-Poland transition due to the aggressive nature of Swedish exit taxation protocols.

The Swedish Tax Agency (Skatteverket) applies a highly stringent standard for individuals departing the country, particularly those who hold Swedish citizenship or who have resided within Swedish borders for a duration exceeding ten years.[11] Under Swedish domestic law, such individuals are presumed to maintain an "essential connection" to Sweden for a period of five years following their physical departure, effectively keeping them subject to unlimited Swedish tax liability unless the taxpayer can bear the heavy burden of proof to demonstrate that all substantial ties have been irreversibly severed.[11] Maintaining a permanent home in Sweden, possessing significant corporate assets, or leaving family members behind are considered insurmountable indicators of continued Swedish residency under domestic statutes.[11] Simultaneously, as established, Poland will claim residency the moment the taxpayer's family and physical presence arrive on Polish soil.[5]

Application of the Tie-Breaker Rules

To resolve such intractable conflicts and prevent punitive double taxation, international law relies upon bilateral agreements, specifically the Double Taxation Treaty (DTT) negotiated between the two states.[7] While the United States model is often referenced in global literature [13], the legally binding document for this specific scenario is the Convention between the Republic of Poland and the Kingdom of Sweden, which aligns closely with the framework of the OECD Model Tax Convention.[14]

Article 4 of the DTT provides a sequential hierarchy of "tie-breaker rules" meticulously designed to allocate exclusive residency for treaty purposes to only one of the competing states.[13] The adjudicating authorities must apply these tests sequentially; the analysis only proceeds to the subsequent tier if the preceding tier yields an inconclusive result. The sequence is defined as follows:

Firstly, the primary test examines the location of a permanent home. The taxpayer is deemed a resident solely of the state in which they have a permanent home physically available to them on a continuous basis.[14] If the taxpayer sold their Swedish residence and purchased or executed a long-term lease on an apartment in Warsaw, the tie is immediately broken in favor of Poland.

Secondly, if the taxpayer maintains permanent homes available to them in both jurisdictions (e.g., retaining a summer house in Stockholm while renting in Warsaw), the analysis shifts to the centre of vital interests. The DTT dictates that residency is assigned to the state with which the individual's personal and economic relations are objectively closer.[14] The relocation of the nuclear family to Poland typically satisfies this requirement, breaking the tie in Poland's favor

despite the retention of Swedish real estate.

Thirdly, in the rare event that the centre of vital interests cannot be definitively ascertained, the treaty looks to the habitual abode. The taxpayer is deemed a resident of the state where they possess an habitual abode, defined by the frequency, duration, and regularity of their physical stays.

Fourthly, if the taxpayer maintains an habitual abode in both states or in neither, the determining factor becomes nationality.

Finally, if the taxpayer is a national of both states or of neither, the competent tax authorities of Sweden and Poland are legally obligated to resolve the conflict through a Mutual Agreement Procedure (MAP).[16]

In the standard scenario where the taxpayer permanently relocated to Poland in 2023, leased a home, and moved their immediate family, the tie-breaker rules definitively assign treaty residency to Poland from the exact date of that relocation. Crucially, the assignment of treaty residency to Poland absolutely overrides Sweden's domestic five-year "essential connection" rule regarding unlimited tax liability. From the treaty transition date forward, Sweden's right to tax is curtailed strictly to income sourced within Sweden, while Poland secures the exclusive right to tax the worldwide income.

Territorial Allocation of Capital Gains Rights

When analyzing cross-border capital gains derived from cryptocurrency, one must consult the specific allocation provisions within the DTT to determine which sovereign state possesses the primary, or exclusive, right to levy taxes. Because most double taxation treaties, including the Sweden-Poland convention, predate the widespread adoption of digital assets, the term "cryptocurrency" is entirely absent from the text. However, under established principles of international treaty interpretation, the disposal of digital assets is universally classified under the provisions governing capital gains.

Under the Sweden-Poland DTT, the taxation of capital gains is regulated by Article 13.[15] While Article 13 delineates highly specific rules permitting the source state to tax gains derived from the alienation of real estate or assets forming part of a permanent business establishment, it universally concludes with a sweeping catch-all provision governing the alienation of all "other property".[15] According to standard OECD Model principles incorporated into the treaty, gains from the alienation of movable property—which unequivocally includes decentralized virtual currencies—are taxable exclusively in the Contracting State of which the alienator is a resident at the exact moment the sale is executed.[15]

This treaty provision confirms and reinforces the domestic split-year outcome. Consequently, any cryptocurrency sales executed between January and March 2023, while the taxpayer was a treaty resident of Sweden, are taxable exclusively by the Swedish Tax Agency at the prevailing Swedish capital gains rate of 30%.[19] The Republic of Poland possesses absolutely no sovereign or treaty-based claim to tax those specific pre-migration capital gains.[4] Conversely, any disposals of cryptocurrency executed from April 2023 through December 2023, after treaty

residency shifted to Poland, fall under the exclusive jurisdiction of the Polish tax authorities and are subject to the Polish capital gains regime.

Mitigating the Risk of the Swedish Exit Tax

A critical nuance for any high-net-worth individual departing the Swedish jurisdiction is the potential application of the Swedish 10-year rule (tioårsregeln) regarding capital gains.[11] Swedish domestic tax legislation aggressively attempts to preserve taxation rights over capital gains derived from the disposal of specific financial instruments for a full decade after an individual ceases to be a Swedish tax resident.[11] The underlying legislative intent is to prevent individuals from accumulating massive unrealized gains in Swedish startups or equities and subsequently migrating to low-tax jurisdictions just days before executing a sale.

However, a rigorous legal analysis of the statutory text reveals that the application of this 10-year rule to the cryptocurrency ecosystem is highly restricted. The specific provisions of the rule explicitly target capital gains arising from the sale of "shares in Swedish companies" or "units in Swedish trusts".[24] Standard, decentralized layer-one and layer-two cryptocurrencies, such as Bitcoin, Ethereum, or Solana, are fundamentally global, decentralized bearer assets. They do not constitute equity shares in a Swedish corporation, nor are they issued by any entity domiciled within Swedish borders. Therefore, the divestment of standard, self-custodied cryptocurrencies entirely escapes the gravitational pull of the Swedish 10-year exit tax rule. Once treaty residency shifts to Poland, Sweden definitively loses the right to tax future generic cryptocurrency disposals.[15]

A vital caveat must be noted regarding synthesized or wrapped assets. If the taxpayer gained exposure to the cryptocurrency market not by holding native tokens on the blockchain, but by purchasing specialized exchange-traded notes (ETNs) or exchange-traded products (ETPs) issued by Swedish financial institutions and traded on the Nasdaq Stockholm exchange (such as the popular XBT Provider certificates), a completely different legal paradigm applies. Because these specific instruments are legally classified as Swedish securities, their subsequent sale while residing in Poland could theoretically trigger the Swedish 10-year rule, resulting in conflicting tax claims that would require advanced treaty dispute resolution.[23] Assuming the taxpayer holds native digital assets, this risk is nullified.

Part IV: The Paradigm of the Polish Cryptocurrency Tax Regime

Upon successfully transitioning tax residency to Poland, the taxpayer becomes wholly subject to the provisions of the Polish Personal Income Tax Act regarding digital assets. Following comprehensive legislative reforms enacted in 2019, the Polish Ministry of Finance established a highly specific, ring-fenced, and relatively favorable tax regime for cryptocurrency investors, particularly when juxtaposed against the punitive tax brackets prevalent in neighboring Nordic and Western European states.[26]

Legal Classification and the Architecture of Taxable Events

Within the Polish legal framework, virtual currencies are not recognized as legal tender. They do not hold the legal status of domestic Polish currency (złoty), because legal tender must be issued by the National Bank of Poland, nor are they classified as foreign currency, as virtual currencies are dematerialized and fail to meet the statutory definition of banknotes or coins utilized in traditional Polish banking law.[1] Furthermore, they are deliberately excluded from the classical definition of financial instruments found in securities market regulations.[1] Instead, for taxation purposes, virtual currencies are legally categorized as property rights (prawa majątkowe).[1]

Income derived from the private, non-commercial trading of cryptocurrencies is strictly classified under a distinct revenue source known as "money capitals" (kapitały pieniężne).[1] This income is subject to a flat tax rate of 19%, universally known in Polish financial circles as the "Belka tax," named after the former Minister of Finance.[1]

The most critical aspect of the Polish cryptocurrency tax regime is the explicit legislative delineation between taxable and tax-neutral events, a distinction that fundamentally dictates trading strategies.

The Polish legislature has decreed that the exchange of one cryptocurrency directly for another cryptocurrency (commonly referred to as crypto-to-crypto swaps, such as exchanging Bitcoin for Ethereum, or exchanging a volatile asset for a stablecoin like USDT or USDC) is entirely, unambiguously tax-neutral.[1] The execution of these intra-ecosystem swaps does not generate any taxable revenue under Polish law, nor does it trigger the realization of any deductible acquisition costs.[32] Furthermore, actions such as merely holding cryptocurrency (HODLing), transferring digital assets between one's own proprietary wallets, or withdrawing funds from a centralized exchange to a hardware cold storage device do not constitute taxable events.[35]

A binding tax obligation arises exclusively at the precise moment the digital asset exits the cryptocurrency ecosystem. Taxable events are strictly limited to instances where cryptocurrency is exchanged for fiat legal tender (such as PLN, EUR, GBP, or USD), where cryptocurrency is actively utilized as a medium of exchange to purchase physical goods or procure services, or where it is exchanged for other non-crypto property rights.[1] At this exact moment of alienation, the revenue is realized, and the corresponding historical costs of acquisition may be deducted to calculate the final taxable base.

Mandatory Reporting Mechanics and the PIT-38 Architecture

Revenues generated, and costs incurred, in connection with cryptocurrency transactions must be reported annually to the Polish tax authorities using a highly specific tax form designated as the **PIT-38** declaration.[26] Within this form, the taxpayer must utilize Section E, which is structurally ring-fenced and dedicated solely to the reporting of virtual currencies, physically isolating these assets from traditional equities or derivatives.[33] The statutory filing period for

the PIT-38 return runs from February 15 to April 30 of the calendar year immediately following the tax year in which the events occurred.[30]

A unique and often misunderstood facet of Polish crypto tax jurisprudence is the mandatory reporting obligation regarding acquisition costs. Under Polish law, a taxpayer is legally obligated to file a PIT-38 return to formally declare the documented costs of acquiring cryptocurrency, even in years where the taxpayer executed absolutely no sales, engaged in no taxable events, and generated zero revenue.[27]

The logic underpinning this requirement is that unused acquisition costs in Poland do not expire. Instead, they are carried forward indefinitely to subsequent tax years, creating a cumulative reservoir of deductible expenses that can be deployed to offset future revenues derived from eventual crypto disposals.[27] If a taxpayer fails to report their acquisition costs on the PIT-38 return for the year in which the expenses were incurred, they technically forfeit the right to seamlessly deduct those costs in the future without engaging in a complex process of filing retroactive corrections (korekta deklaracji) for past years.

Furthermore, it is essential to highlight that the Polish system does not incorporate any concept of a tax-free allowance or a de minimis threshold for capital gains; the 19% tax is strictly applicable to the first zloty of realized profit.[30] Finally, for ultra-high-net-worth individuals, if the aggregate sum of all capital gains (encompassing traditional securities, dividends, and crypto profits reported on the PIT-38) exceeds the threshold of 1,000,000 PLN within a single calendar year, the surplus amount is subject to an additional 4% "Solidarity Levy" (Danina Solidarnościowa), which necessitates the filing of a separate declaration known as the DSF-1.[31]

Part V: Transnational Cost Basis Tracing and Foreign Exchange Translation

The most computationally intensive and legally perilous challenge in managing a transition from Sweden to Poland involves determining the exact, legally permissible cost basis for Polish tax purposes for cryptocurrency assets that were acquired years prior while the taxpayer was domiciled in a foreign jurisdiction.

Rejection of the Step-Up in Basis Doctrine

When a taxpayer relocates to Poland possessing an established portfolio of highly appreciated digital assets, a pervasive misconception is the expectation of a "step-up" in basis. This theory posits that upon crossing the border and altering tax residency, the acquisition cost of the portfolio is automatically re-evaluated and recalibrated to reflect the fair market value of the assets on the exact day Polish tax residency commences.

This assumption is unequivocally rejected under Polish tax law. Polish administrative courts (Wojewódzkie Sądy Administracyjne - WSA) and the Director of the National Revenue Information (Dyrektor Krajowej Informacji Skarbowej - KIS) have consistently and rigidly ruled that a mere change in the taxpayer's jurisdiction of residence does not obliterate or override the fundamental right—and obligation—to account for the historical, actual, and empirically

documented costs incurred to acquire the asset.[4] The Polish legal framework explicitly does not grant a step-up in basis for private capital assets being imported into the country by migrating individuals.[4]

Consequently, if a unit of Bitcoin was purchased in 2021 for an expenditure of EUR 30,000 while the taxpayer was a resident of Sweden, and that exact unit is subsequently sold for EUR 50,000 in 2024 while the taxpayer is a resident of Poland, the deductible acquisition cost designated for the Polish PIT-38 return remains the exact historical purchase price: EUR 30,000.[34] The passage of time and the crossing of international borders do not alter the quantum of the original economic outlay. To claim this deduction in Poland, the taxpayer bears the absolute burden of proof and must be capable of substantiating this historical purchase via irrefutable documentation, encompassing exchange transaction logs, cryptographic transaction hashes, and traditional bank transfer receipts proving the outflow of fiat currency.[26]

The Rigorous Mechanics of Currency Conversion (The NBP Rate)

Because the sovereign tax system of Poland demands that all fiscal reporting be strictly and exclusively denominated in the Polish Zloty (PLN), any revenue generated or cost incurred in a foreign fiat currency must be translated using highly specific, statutory exchange rate mechanisms.[1] It is absolutely impermissible to simply deduct the EUR acquisition costs from the EUR sales revenue and convert the resulting net profit into PLN. Each economic event must be mathematically converted independently, at the exact moment in time it occurred.

According to the unyielding stipulations of Polish tax law, foreign currency values must be converted into PLN utilizing the average exchange rate officially published by the National Bank of Poland (NBP) on the **last working day immediately preceding the date of the transaction**.[30]

Mathematical Application for the 2021 to 2024 Transition Trade:

To illuminate the severe implications of this rule, one must trace the specific variables of the user's scenario involving the EUR 30,000 purchase and the EUR 50,000 sale.

Firstly, the Acquisition Cost Conversion: The EUR 30,000 expenditure executed in 2021 must be converted into PLN utilizing the specific NBP average exchange rate from the last working day immediately preceding the exact date of the purchase in 2021.[31] This locks the PLN-denominated cost basis in time, based on the macroeconomic currency realities of 2021.

Secondly, the Revenue Conversion: The EUR 50,000 proceeds received from the disposal in 2024 must be converted into PLN utilizing the specific NBP average exchange rate from the last working day immediately preceding the exact date of the sale in 2024.[31]

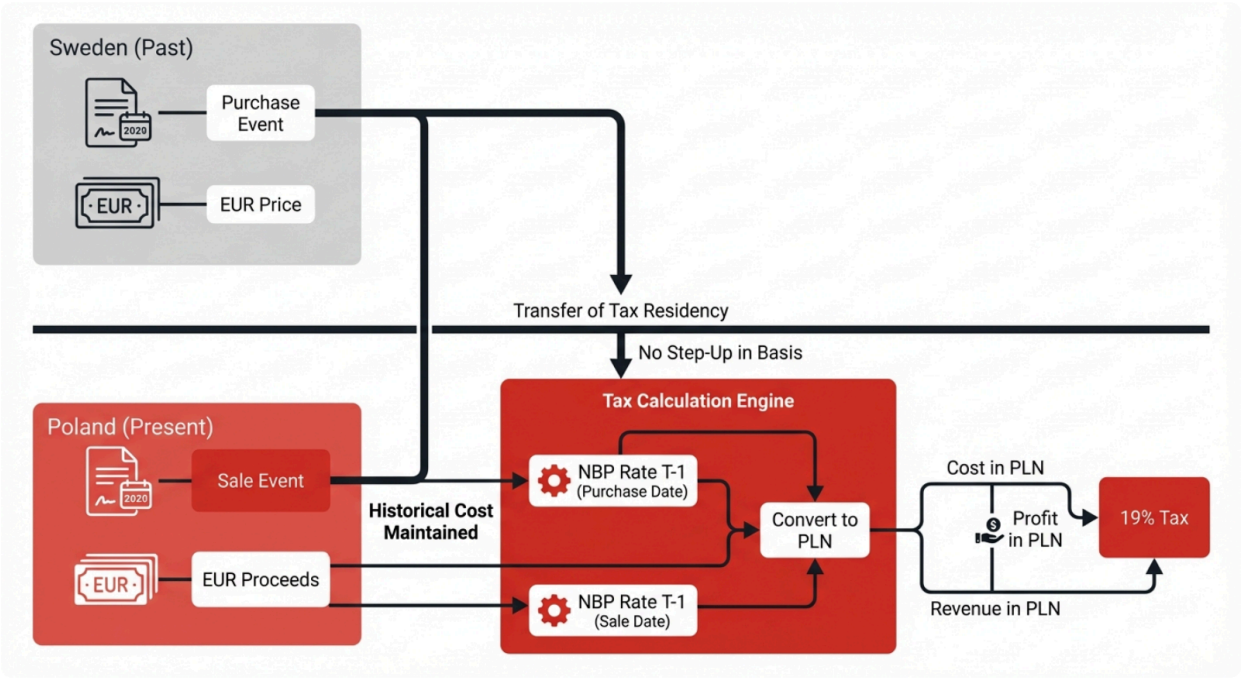
The final taxable base subjected to the 19% capital gains tax is then calculated strictly as the PLN-converted revenue minus the PLN-converted acquisition cost.[26]

Transaction Phase	Hypothetical Execution Date	Fiat Value	Statutory Exchange Rate Mechanism (NBP T-1)	Converted Value (PLN)
Purchase (Cost Basis)	Wednesday, October 13, 2021	€30,000	NBP Avg Rate from Tue, Oct 12, 2021 (Assumed rate: 4.59 PLN/EUR)	**137,700 PLN**
Sale (Realized Revenue)	Monday, May 20, 2024	€50,000	NBP Avg Rate from Fri, May 17, 2024 (Assumed rate: 4.26 PLN/EUR)	**213,000 PLN**
Taxable Base (Profit)	-	-	Revenue (PLN) minus Cost (PLN)	**75,300 PLN**
Tax Liability (19%)	-	-	Taxable Base $\times$ 0.19	**14,307 PLN**

The table above elucidates a critical, often unforeseen hazard in cross-border crypto taxation: the integration of foreign exchange (FX) risk into the capital gains calculation. Because the Polish system demands independent chronological conversion, fluctuations between the Euro and the Zloty over the multi-year holding period directly and significantly alter the final taxable base in Poland. In a scenario where the Euro depreciates against the Zloty between 2021 and 2024, the mathematical spread narrows, effectively reducing the apparent capital gain when translated into the local currency. Conversely, if the Euro had appreciated significantly against the Zloty, the taxpayer would pay the 19% tax not only on the appreciation of the Bitcoin but also on the embedded foreign exchange appreciation of the Euro against the local currency, a

phenomenon known as "phantom gains."

Cross-Border Cost Basis Migration and Currency Conversion Logic



Polish tax law mandates the retention of the historical acquisition cost. Both the original purchase price and the final sale proceeds must be independently converted into PLN using the National Bank of Poland (NBP) exchange rates applicable on the working days preceding each respective transaction.

Implementation of the FIFO Algorithmic Methodology

When managing a portfolio characterized by frequent, iterative acquisitions of the same digital asset over a multi-year period, Polish tax law strictly mandates the deployment of the First-In, First-Out (FIFO) accounting methodology to definitively determine exactly which specific chronological "lot" of cryptocurrency is being alienated during a sale.[31]

For a taxpayer who engaged in active trading, dollar-cost averaging, and general accumulation of cryptocurrency assets while domiciled in Sweden between 2020 and 2022, configuring the Polish tax calculator is an intricate task. The FIFO algorithm must be programmed to construct a comprehensive historical queue encompassing every single acquisition event.[31] Crucially, the algorithm must lock these pre-Poland lots at their precise historical fiat purchase prices. More importantly, the software must be hard-coded to individually and automatically translate each specific micro-transaction into Polish Zloty utilizing the specific historical NBP exchange rate pulled from the exact working day preceding each individual historical purchase.[31] Modifying

the algorithm to utilize the market value of the assets on the date the individual became a Polish resident is a direct violation of Polish tax statutes and will invariably trigger severe auditing penalties.

Part VI: Asymmetries in Loss Carryforwards and Employment-Derived Assets

The Non-Transferability of Prior Foreign Capital Losses

A fundamental element of strategic tax planning during a jurisdictional transition is the management of accumulated capital losses. If the taxpayer meticulously filed a Swedish K4 tax return for the fiscal year 2022, demonstrating significant capital losses derived from cryptocurrency trading during a market downturn, a vital economic question is whether these accumulated Swedish losses can be legally imported and utilized to offset newly generated capital gains in Poland during 2023 or 2024.

The unequivocal legal consensus, supported by the foundational architecture of international tax law, is that foreign capital losses realized and crystallized prior to the individual becoming a Polish tax resident cannot be carried forward or integrated into the Polish tax system.[31]

The legal rationale underpinning this prohibition is that a capital loss generated from an asset disposal in 2022 falls entirely outside the sovereign jurisdiction of the Polish tax authorities, because the taxpayer was not subject to Polish tax liability—either limited or unlimited—at the time the economic loss was sustained.[4] A sovereign state cannot allow tax deductions against its own treasury for economic events that occurred outside its jurisdiction while the individual was bound to another state. Poland only permits the carryforward of losses—or, strictly speaking within the specific lexicon of Polish crypto tax law, the carryforward of excess acquisition costs—that were incurred on transactions strictly subject to Polish tax law.[36]

Therefore, any capital losses permanently crystallized via asset disposals while residing in Sweden are irreversibly locked within the Swedish tax framework. They cannot be imported into the Polish PIT-38 return to shield future Polish gains.[31] However, as previously established, the unrealized acquisition costs of assets that were bought in Sweden and brought into Poland intact remain fully deductible upon their eventual sale, as the realization event (the sale) occurs under Polish jurisdiction.[31]

The Perilous Treatment of Assets Acquired via Employment Compensation

A particularly nuanced and highly dangerous scenario within the Polish tax framework arises if the taxpayer received cryptocurrency as direct employment compensation, bonuses, or via complex decentralized finance (DeFi) mechanisms while previously residing in Sweden.

In the Swedish jurisdiction, cryptocurrency received as remuneration for labor is subjected to stringent income taxation protocols. The Swedish Tax Agency classifies this inflow as earned income, subjecting the fair market value of the tokens at the precise moment of receipt to

standard National and Municipal Income Tax brackets, which can cumulatively exceed 50%.[20]

If the taxpayer retains these highly taxed assets and subsequently sells them for fiat currency years later while residing in Poland, the critical question is identifying the legal cost basis for the Polish PIT-38 declaration. This area is highly contested in Polish tax jurisprudence.

The logical, taxpayer-favorable approach—often referred to as the Barter or Income Argument—relies on general Polish civil law interpretations regarding assets received in exchange for non-monetary services. Under this paradigm, receiving crypto for labor is treated conceptually as a barter transaction. The revenue recognized at the exact time of receipt conceptually transforms into the acquisition cost for the subsequent private sale.[30] Because the asset was heavily taxed as employment income in Sweden at its fair market value upon receipt, that specific historical fair market value (meticulously converted to PLN at the NBP rate from the day preceding the date of receipt) should logically and legally serve as the acquisition cost.[30]

However, the taxpayer faces immense risk from the Polish tax authorities, who possess a notorious track record of adopting a highly restrictive, hyper-literal reading of the PIT Act regarding the definition of "expenses" (wydatki). The Director of the National Revenue Information (KIS) frequently asserts that if no direct, out-of-pocket financial outlay (i.e., the transfer of fiat cash) was made by the taxpayer to acquire the cryptocurrency, the deductible cost of acquisition is strictly zero.[27] This draconian interpretation is most frequently and aggressively applied to assets acquired via airdrops, mining block rewards, staking yields, or gifts.[27] If the Polish authorities successfully assign a zero cost basis to employer-granted cryptocurrency, the taxpayer will be forced to pay the 19% capital gains tax on the entire gross principal amount upon sale, resulting in catastrophic double taxation across the two jurisdictions.

To defend against this aggressive posture and successfully argue the Barter/Income interpretation, the taxpayer must preemptively construct an impenetrable fortress of documentation from the Swedish period.[1] This dossier must include official Swedish tax returns proving the income assessment, employer payslips explicitly detailing the fiat value of the cryptocurrency taxed as income at the moment of distribution, and legally binding employment contracts. This evidence is crucial to successfully defend the position before the Polish administrative courts (WSA) that the historical value assessed as income constitutes a legitimate, legally recognizable acquisition cost under the broader principles of civil law.[30]

Part VII: Compliance Imperatives, Foreign Tax Credits, and DAC8

Mechanisms for Claiming Foreign Tax Credits (The PIT/ZG Annex)

During the highly complex 2023 transition year, if the split-year residency principles are applied correctly and the chronological timeline is strictly maintained, absolute double taxation should theoretically not occur. Sweden exclusively taxes the gains realized between January and

March, while Poland exclusively taxes the gains realized between April and December.[4]

However, theoretical models often clash with the messy reality of cross-border financial activity. If a specific transaction falls into a jurisdictional grey area where both sovereign nations aggressively assert simultaneous taxing rights—for instance, a massive capital gain realized on the exact, disputed day of the transition, or if the Swedish Tax Agency stubbornly attempts to apply a domestic exit tax component in violation of the treaty—the taxpayer must proactively seek statutory relief to prevent their wealth from being confiscated twice.

If income earned abroad is legitimately subjected to taxation in Poland, the taxpayer is legally obligated to file the **PIT/ZG** annex alongside their standard annual PIT-38 return.[10] The PIT/ZG annex is the formal mechanism for declaring foreign-sourced income and invoking the protections of double taxation treaties.[50]

The Sweden-Poland Double Taxation Treaty generally mandates the employment of the proportional deduction method (metoda proporcjonalnego odliczenia) for managing capital gains.[16] Under the mechanics of this method, the taxpayer must first aggregate their total global cryptocurrency profit and apply the standard Polish 19% tax rate to establish a baseline liability. Subsequently, the taxpayer is permitted to deduct the actual quantum of tax paid to the Swedish authorities directly from the calculated Polish tax liability.[16]

Crucially, this deduction operates with a strict mathematical ceiling; it cannot exceed the precise amount of Polish tax that is proportionately attributable to the specific income earned within the Swedish jurisdiction.[33] Given that the Swedish capital gains tax rate on such assets is structurally 30%, which is significantly higher than the Polish 19% rate [19], the practical outcome is that Poland will reduce the Polish tax obligation on that specific disputed gain to exactly zero. However, under no circumstances will the Polish treasury issue a refund for the excess 11% paid to Sweden; the higher Swedish rate simply absorbs the entirety of the Polish liability.[33]

The Imminent Threat of the DAC8 Directive

The taxpayer's failure to file Polish crypto tax returns (PIT-38) for the fiscal years 2023 and 2024 represents a critical compliance failure and a massive legal vulnerability. As exhaustively established, Polish tax law strictly mandates the reporting of all cryptocurrency activity—including the mere acquisition of assets even if no sales occurred—on the PIT-38 form.[31]

Historically, many retail and institutional investors relied upon the inherent pseudonymity of blockchain ledger architecture, coupled with the historical reluctance of foreign centralized exchanges to share client data across borders, to bypass local taxation regimes. This strategy of deliberate obfuscation is now definitively, permanently obsolete due to the aggressive legislative implementation of the European Union's Eighth Directive on Administrative Cooperation, universally known as DAC8.[1]

The DAC8 framework, which has been fully and rigorously incorporated into Polish national law and will be actively and relentlessly enforced starting January 1, 2026, completely dismantles the veil of privacy surrounding digital assets. The directive mandates that all digital asset

service providers (encompassing centralized exchanges, over-the-counter brokers, and custodial wallet providers) operating anywhere within the European Union must automatically, systematically collect and report granular user transaction data to their local tax authorities.[1] The Polish National Revenue Administration (KAS) will automatically receive this vast trove of intelligence from exchanges across Europe, including those domiciled in Sweden or other EU member states.[2]

Consequently, the Polish tax authorities will soon possess unrestricted, algorithmic visibility into the entirety of the taxpayer's trading activity on centralized platforms during the 2023 and 2024 transition period. The Polish government has introduced exceptionally stringent, draconian punitive measures specifically targeting the concealment of cryptocurrency income. This includes a punitive penalty tax rate that can reach an astonishing 75% on unreported earnings uncovered during a formal audit.[2]

To mitigate this existential financial risk, the taxpayer must immediately abandon any reliance on informational asymmetry. The optimal legal strategy is to proactively utilize the statutory "active repentance" (czynny żal) mechanism. This involves voluntarily submitting the overdue PIT-38 forms for the 2023 and 2024 tax years, painstakingly calculating the historical NBP exchange rates for all transactions, and voluntarily settling any outstanding 19% capital gains tax alongside the accumulation of statutory default interest. Crucially, the czynny żal mechanism only provides immunity from criminal fiscal penalties if the disclosure and payment are submitted before the KAS initiates formal audit proceedings.[35]

Conclusions and Strategic Directives

The complex transition of tax residency from the Kingdom of Sweden to the Republic of Poland introduces a profound paradigm shift in the legal and economic taxation of digital assets. It transitions the taxpayer from a high-tax regime characterized by broad, aggressive exit-tax mechanisms designed to trap capital, to a more favorable flat 19% regime that demands unrelenting, mathematically rigorous tracking of historical acquisition costs. Based upon the exhaustive analysis of domestic Polish statutes, Swedish exit regulations, and binding international treaties, the following definitive legal conclusions are established for the taxpayer's highly specific scenario:

Firstly, Polish tax residency, and the corresponding imposition of unlimited tax liability, commences strictly on the definitive date the centre of vital interests was physically and economically relocated to Poland in 2023. The foundational principle of split-year residency acts as an absolute legal shield, protecting cryptocurrency capital gains realized while residing in Sweden prior to the move from any retroactive Polish taxation.

Secondly, the Polish tax architecture fundamentally rejects the doctrine of a step-up in basis for assets acquired prior to residency. The legal cost basis utilized for the Polish PIT-38 return must be the exact, historically documented fiat purchase price (e.g., EUR) paid in Sweden during the 2020 to 2022 accumulation phase.

Thirdly, to ascertain the legally binding taxable income in Poland, both the historical acquisition

cost and the current sale revenue must be entirely decoupled and independently converted into Polish Zloty (PLN) utilizing the average exchange rate published by the National Bank of Poland (NBP) from the working day immediately preceding each respective economic event. This exposes the taxpayer to hidden foreign exchange risks inherent in holding foreign-denominated assets.

Fourthly, accumulated capital losses realized via asset disposals while residing under Swedish jurisdiction cannot be imported to offset Polish capital gains. However, the meticulously documented, unrealized acquisition costs of assets brought into Poland and subsequently sold are fully deductible under Polish law.

Finally, the failure to file PIT-38 declarations for the 2023 and 2024 fiscal years must be rectified with extreme urgency. Under the impending implementation of the DAC8 automated, pan-European data-sharing framework, Polish tax authorities will possess direct, unmediated visibility into cross-border exchange activity, exposing the non-compliant taxpayer to severe, confiscatory punitive taxation if proactive legal corrections via the active repentance mechanism are not immediately executed.

Works cited

1. Cryptocurrencies In Poland | Intertax, accessed on March 19, 2026, https://polishtax.com/cryptocurrencies-in-poland/
2. Poland Integrates EU Directive on Digital Assets into National Law - Binance, accessed on March 19, 2026, https://www.binance.com/en/square/post/302865714265393
3. Taxation of international executives: Poland - KPMG agentic corporate services, accessed on March 19, 2026, https://assets.kpmg.com/content/dam/kpmgsites/xx/pdf/2023/01/TIES-Poland.pdf.coredownload.inline.pdf
4. Change of Tax Residency During a Tax Year - Split Tax Residency ..., accessed on March 19, 2026, https://rezydencja-podatkowa-malta.pl/en/change-of-tax-residency-during-a-tax-year-split-tax-residency/
5. Returning to Poland: how to determine tax residency and avoid double taxation - getsix, accessed on March 19, 2026, https://getsix.eu/getsix-blog/accounting-hr-payroll-tax-and-legal-alerts-poland/taxes-and-law-in-poland/returning-to-poland-how-to-determine-tax-residency-and-avoid-double-taxation-a-complete-guide-for-those-returning-from-emigration-part-2/
6. When Do You Become a Polish Tax Resident? Rules for Foreigners - Sarego Finance, accessed on March 19, 2026, https://saregofinance.pl/insights/when-do-you-become-polish-tax-resident/
7. Tax explanations - determining tax residency in Poland - Grant Thornton, accessed on March 19, 2026, https://grantthornton.pl/en/article/tax-explanations-determining-tax-residency-in-poland/

8. How to lose your Polish tax residency - Rezydencja podatkowa Malta, accessed on March 19, 2026, https://rezydencja-podatkowa-malta.pl/en/how-to-lose-your-polish-tax-residency/
9. Change of Tax Residence - Anna Maria Panasiuk, accessed on March 19, 2026, https://annamariapanasiuk.com/en/strategic-tax-residency-change-advisory/
10. Changing Tax Residency – When and How to Report It to the Tax Authorities - TaxCoach, accessed on March 19, 2026, https://taxcoach.pl/en/blog/changing-tax-residency-when-and-how-to-report-it-to-the-tax-authorities.html
11. Moving from Sweden - Skatteverket, accessed on March 19, 2026, https://www.skatteverket.se/servicelankar/otherlanguages/englishengelska/individualsandemployees/movingfromsweden.4.7be5268414bea064694c58f.html
12. Taxation of international executives: Sweden - KPMG agentic corporate services, accessed on March 19, 2026, https://assets.kpmg.com/content/dam/kpmg/xx/pdf/2023/01/TIES-Sweden.pdf
13. Sweden Tax Treaty - Freeman Law, accessed on March 19, 2026, https://freemanlaw.com/international-tax-treaties/sweden/
14. Dual tax residence: when the tie does not break | DLA Piper, accessed on March 19, 2026, https://www.dlapiper.com/insights/publications/2021/05/agefi-dual-tax-residence-when-the-tie-does-not-break
15. New tax treaty between Poland and Sweden | International Tax Review, accessed on March 19, 2026, https://www.internationaltaxreview.com/article/2a68rfy5bw2ycq1etjzog/new-tax-treaty-between-poland-and-sweden
16. Sweden, double tax treaty, convention - Poland - Webset.cz, accessed on March 19, 2026, https://www.webset.cz/english/tax_poland_sweden.htm
17. sweden-technical-explanation-1994.pdf - IRS, accessed on March 19, 2026, https://www.irs.gov/pub/irs-trty/sweden-technical-explanation-1994.pdf
18. Convention between the United States of America and the Republic of Poland for the Avoidance of Double Taxation and the Preventi - Treasury.gov, accessed on March 19, 2026, https://home.treasury.gov/system/files/131/Treaty-Poland-2-13-2013.pdf
19. Crypto Tax Legislation & Law in Sweden - CMS, accessed on March 19, 2026, https://cms.law/en/int/expert-guides/cms-expert-guide-on-taxation-of-crypto-assets/sweden
20. Crypto Tax Sweden: 2026 Guide - Koinly, accessed on March 19, 2026, https://koinly.io/guides/crypto-tax-sweden/
21. The Ultimate Guide to Crypto Taxes in Sweden 2026 - TokenTax, accessed on March 19, 2026, https://tokentax.co/blog/crypto-tax-sweden
22. An Essential Guide for Americans Moving to Sweden | Creative Planning International, accessed on March 19, 2026, https://creativeplanning.com/international/insights/country-guides/expats-moving-to-sweden/

23. The effects of introducing an exit tax in Sweden - Copenhagen Economics, accessed on March 19, 2026, https://copenhageneconomics.com/publication/the-effects-of-introducing-an-exit-tax-in-sweden/
24. Own shares or securities in Sweden - Nordisk eTax, accessed on March 19, 2026, https://nordisketax.net/pages/en-GB/ownin/sweden/shares/
25. Foreign currency | Skatteverket, accessed on March 19, 2026, https://www.skatteverket.se/servicelankar/otherlanguages/englishengelska/individualsandemployees/declaringtaxesforindividuals/howtofileyourtaxreturn/thecontentsoftheincometaxreturn/foreigncurrency.4.676f4884175c97df419301c.html
26. Cryptocurrency tax in Poland in 2025 – rules and settlement - getsix, accessed on March 19, 2026, https://getsix.eu/getsix-blog/accounting-hr-payroll-tax-and-legal-alerts-poland/taxes-and-law-in-poland/cryptocurrency-tax-in-poland-in-2025-rules-and-settlement/
27. Crypto Tax in Poland: 2025 Guide | Dudkowiak & Putyra, accessed on March 19, 2026, https://www.dudkowiak.com/blog/crypto-tax-in-poland-2025-guide/
28. Cryptoassets in Poland: tax traps, reporting duties and business risks, accessed on March 19, 2026, https://bpcc.org.pl/cryptoassets-in-poland-tax-traps-reporting-duties-and-business-risks/
29. Cryptocurrency tax in Poland in 2025 – rules and settlement, accessed on March 19, 2026, https://poland-accounting.eu/2025/09/cryptocurrency-tax-in-poland-in-2025-rules-and-settlement/
30. Podatek od kryptowalut - jak rozliczyć PIT od krypto w 2025/2026 | e ..., accessed on March 19, 2026, https://www.e-pity.pl/podatek-pit-od-kryptowalut/
31. PIT 38 FAQ 2026 Capital gains tax in Poland - Sarego Finance, accessed on March 19, 2026, https://saregofinance.pl/polish-capital-gains-tax-faq/
32. Cryptocurrency tax in Poland: PIT-38 explained for investors - MDDP, accessed on March 19, 2026, https://www.mddp.pl/pit-settlements-for-cryptocurrencies-and-related-tax-obligations/
33. How to report crypto taxes in Poland (PIT) - Divly, accessed on March 19, 2026, https://divly.com/en/guides/polish-crypto-tax-filing-guide
34. Cryptocurrency trading – What is the process for taxation when a change of tax residence occurs? A significant judgment by the WSA - Nexia Advicero, accessed on March 19, 2026, https://www.nexiaadvicero.eu/en/cryptocurrency-trading-what-is-the-process-for-taxation-when-a-change-of-tax-residence-occurs-a-significant-judgment-by-the-wsa/
35. Poland crypto tax guide 2025 - Latest KAS updates - Kraken, accessed on March 19, 2026, https://www.kraken.com/learn/poland-crypto-tax-guide
36. Poland Crypto Tax Guide 2026 - Kryptos, accessed on March 19, 2026, https://kryptos.io/guides/poland-crypto-tax-guide-2026

37. Poland crypto tax guide 2025 - Latest KAS updates - Kraken, accessed on March 19, 2026, https://www.kraken.com/it/learn/poland-crypto-tax-guide
38. Poland Crypto Tax Guide 2026 [Podatek od Kryptowalut] - Koinly, accessed on March 19, 2026, https://koinly.io/guides/crypto-tax-poland/
39. How to settle cryptocurrencies in the PIT for 2024? - BTTP, accessed on March 19, 2026, https://bttp.pl/en/aktualnosci/how-to-settle-cryptocurrencies-in-the-pit-for-2024/
40. Zbycie kryptowalut - podatki.gov.pl, accessed on March 19, 2026, https://www.podatki.gov.pl/podatki-osobiste/pit/informacje-podstawowe/co-jest-opodatkowane/zbycie-kryptowalut/
41. How to File eToro PIT 38 in Poland | Tax Return for eToro Investors - Sarego Finance, accessed on March 19, 2026, https://saregofinance.pl/how-to-file-etoro-pit-38/
42. PIT 38 Poland 2026: Capital Gains Tax Filing for Foreign Brokers - Sarego Finance, accessed on March 19, 2026, https://saregofinance.pl/pit-38-en/
43. Capital Gains Tax in Poland – rules, rates & compliance - Dudkowiak & Putyra, accessed on March 19, 2026, https://www.dudkowiak.com/tax-law-in-poland/capital-gains-tax-in-poland/
44. Poland - Corporate - Income determination - Worldwide Tax Summaries, accessed on March 19, 2026, https://taxsummaries.pwc.com/poland/corporate/income-determination
45. Guide to declaring crypto taxes in Sweden (2026) - Divly, accessed on March 19, 2026, https://divly.com/en/guides/sweden
46. Sweden Cryptocurrency Taxes: Ultimate Guide 2026 - CoinLedger, accessed on March 19, 2026, https://coinledger.io/guides/crypto-tax-sweden
47. Sweden and Cryptocurrency - Freeman Law, accessed on March 19, 2026, https://freemanlaw.com/cryptocurrency/sweden/
48. Kryptovalutor | Skatteverket, accessed on March 19, 2026, https://skatteverket.se/privat/skatter/vardepapper/andratillgangar/kryptovalutor.4.15532c7b1442f256bae11b60.html
49. Podatek za pracę za granicą – kiedy nie trzeba wykazywać dochodów z zagranicy?, accessed on March 19, 2026, https://www.podatnik.info/publikacje/podatek-za-prace-za-granica-kiedy-nie-trzeba-wykazywac-dochodow-z-zagranicy,6164b0
50. PIT/ZG ANNEX - Crede Experto, accessed on March 19, 2026, https://crede.com.pl/en/pit-zg-annex/